

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
SHAMAR WHITTINGHAM and LYNDON SYLVESTER,

SUMMONS

Plaintiffs,

Plaintiff designates
QUEENS County as the
place of trial.

-against-

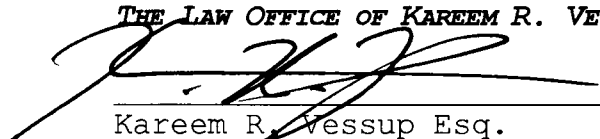
THE CITY OF NEW YORK, DET. CRISTOP CRUZADO
(Tax Reg. 945630), DET. WAGNER (of the
113th Detective Squad on 3/9/17), DET.
ALEKSANDR KALOGIROS (of the 113th
Detective Squad on 3/9/17),The basis of venue
is:
The County where the
Tort aroseDefendants.
-----XThe Tort arose in
QUEENS County, State
of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
JUNE 6, 2018

THE LAW OFFICE OF KAREEM R. VESSUP ESQ.


Kareem R. Vessup Esq.

Attorneys for Plaintiff

SHAMAR WHITTINGHAM AND LYNDON
SYLVESTER89-31 161st Street Suite 705

Jamaica, New York 11432

(718)219-8744

Our File No. 17-1444

TO: The City of New York
C/O NYC Law Department
100 Church Street
New York, NY 10007

Det. Christop Cruzado
One Police Plaza
New York, NY 10038

Det. Wagner
One Police Plaza
New York, NY 10038

Det. Aleksandr Kalogiros
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
SHAMAR WHITTINGHAM and LYNDON SYLVESTER,

Plaintiffs,

Index No.:

-against-

COMPLAINT

THE CITY OF NEW YORK, DET. CRISTOP CRUZADO
(Tax Reg. 945630), DET. WAGNER (of the
113th Detective Squad on 3/9/17), DET.
ALEKSANDR KALOGIROS (of the 113th
Detective Squad on 3/9/17),

Defendants.

-----X
Plaintiffs **SHAMAR WHITTINGHAM** and **LYNDON SYLVESTER**, by
their attorneys **THE LAW OFFICE OF KAREEM R. VESSUP ESQ.**,
complaining of the Defendants, respectfully allege upon
information and belief, as follows:

1. At all times herein mentioned, Plaintiff **SHAMAR WHITTINGHAM** was and still is a resident of the County of Queens, City and State of New York.

2. At all times herein mentioned, Plaintiff **LYNDON SYLVESTER** was and still is a resident of the County of Queens, City and State of New York.

3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

4. On or about June 8, 2017 and within ninety (90) days after the claim herein arose, Plaintiff served a Notice of Claim,

in writing and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

6. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on October 10, 2017.

7. Upon information and belief, at all times herein mentioned, Defendants **DET. CRISTOP CRUZADO (Tax Reg. 945630)**, **DET. WAGNER (of the 113th Detective Squad on 3/9/17)**, **DET. ALEKSANDR KALOGIROS (of the 113th Detective Squad on 3/9/17)** were and are police officers and/or Detectives of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the

agents, servants and/or employees of the Defendant, **THE CITY OF NEW YORK**

8. Upon information and belief Defendants **DET. CRISTOP CRUZADO (Tax Reg. 945630)**, **DET. WAGNER (of the 113th Detective Squad on 3/9/17)**, **DET. ALEKSANDR KALOGIROS (of the 113th Detective Squad on 3/9/17)** encountered Plaintiffs during the performance of their duties as Officers and/or Detectives of Defendant **THE CITY OF NEW YORK**.

BACKGROUND FACTS

9. Upon information and belief, on March 9, 2017 at or near 192nd Street and 118th Road in Queens, NY one or more occupants of a motor vehicle drove up to a group of individuals and fired gun shots striking at least one of those individuals.

10. Upon information and belief, NYPD responded to the location of the shooting shortly thereafter.

11. Upon information and belief, NYPD Detectives **DET. CRISTOP CRUZADO (Tax Reg. 945630)**, **DET. WAGNER (of the 113th Detective Squad on 3/9/17)**, **DET. ALEKSANDR KALOGIROS (of the 113th Detective Squad on 3/9/17)** from the NYPD 113th Pct. were involved in the investigation of the shooting.

12. Upon information and belief, on March 10, 2017 Plaintiffs were taken into custody at the NYPD 113th Precinct and

questioned in connection with the above referenced shooting.

13. Upon information and belief, on March 10, 2017 Defendant **DET. CHRISTOP CRUZADO** acting either alone or with other Police Officers and/or Detectives attempted to coerce Plaintiffs to confess to the commission of the above referenced shooting.

14. Despite the tactics of Defendants Plaintiffs maintained their innocence and offered no confession.

15. Upon information and belief, **DET. CHRISTOP CRUZADO** arrested Plaintiffs without any warrants on March 10, 2017 at approximately 11:15am.

16. Upon information and belief, on March 10, 2017 Defendants **DET. CRISTOP CRUZADO (Tax Reg. 945630)**, **DET. WAGNER (of the 113th Detective Squad on 3/9/17)**, **DET. ALEKSANDR KALOGIROS (of the 113th Detective Squad on 3/9/17)** provided false, erroneous incomplete and/or misrepresented information to the Queens County District Attorney's Office resulting in the initiation of a criminal prosecution against Plaintiffs charging them with Attempted Murder, 2 Counts of Criminal Possession of a Weapon in the Second Degree, Assault in the Second Degree and Reckless Endangerment in the First Degree.

17. Additionally, Defendant **DET. CRISTOP CRUZADO** reviewed and signed Criminal Complaints for the Plaintiffs named herein,

wherein he swore to false and/or misrepresented information regarding the subject incident and/or Plaintiffs involvement.

18. Upon information and belief, Defendants **DET. CRISTOP CRUZADO (Tax Reg. 945630)**, **DET. WAGNER (of the 113th Detective Squad on 3/9/17)**, **DET. ALEKSANDR KALOGIROS (of the 113th Detective Squad on 3/9/17)** remained involved in the criminal prosecutions brought against the Plaintiffs in this lawsuit by conferring with the Queens District Attorney's Office at various stages of the prosecution.

19. The criminal prosecutions brought against Plaintiffs were brought by Defendants **DET. CRISTOP CRUZADO (Tax Reg. 945630)**, **DET. WAGNER (of the 113th Detective Squad on 3/9/17)**, **DET. ALEKSANDR KALOGIROS (of the 113th Detective Squad on 3/9/17)** in malice, because among other reasons, the charges were brought to achieve an objective repugnant to the ends of justice.

20. Upon information and belief, on or about March 10, 2017 Plaintiffs were arraigned in Queens County Criminal Court. At the arraignment bail was set on Plaintiffs in the amount of FIFTY THOUSAND (\$50,000.00) DOLLARS each, an amount that they could not afford to pay or obtain a bond to cover.

21. Upon information and belief, Plaintiffs were taken into custody by members of the New York City Department of Corrections

at Riker's Island where they remained for seven days until they were released on their own recognizance because no indictment was secured against them.

22. Upon information and belief, Plaintiffs had to make approximately 6 court appearances after the arraignment while the charges were still pending until on or about September 28, 2017 when all charges against Plaintiffs were dismissed and sealed.

AS AND FOR A FIRST CAUSE OF ACTION

23. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. On March 10, 2017 within the NYPD 113th Pct. in Queens, NY, Defendants, jointly and severally, subjected Plaintiffs to a reasonable apprehension of an impending harmful or offensive touching immediately preceding their unlawful arrests of Plaintiffs.

25. Plaintiffs did not consent to this conduct by Defendants, nor was the conduct privileged or otherwise authorized by law.

26. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A SECOND CAUSE OF ACTION

27. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "26" with full force and effect as though set forth at length herein

28. On March 10, 2017 within the NYPD 113th Pct. in Queens, NY, Defendants, jointly and severally, subjected Plaintiffs to a harmful and/or offensive touching during their unlawful arrests and detention of the Plaintiffs.

29. Plaintiffs did not consent to being harmfully and/or offensively touched by Defendants in this manner, nor was the conduct privileged or otherwise authorized by law.

30. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A THIRD CAUSE OF ACTION

31. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "30" with full force and effect as though set forth at length herein

32. Upon information and belief, on March 10, 2017 at the NYPD 113th Pct. Defendants, jointly and severally and in their capacity as Police Officers and/or Detectives arrested Plaintiffs

without warrants or other legal process and without first possessing probable cause to believe that Plaintiffs committed any crimes.

33. Plaintiffs were thereafter held in custody for approximately 18 hours until they were arraigned in Queens County Criminal Court.

34. The Defendants intentionally confined Plaintiffs without their consent and the confinements were not otherwise privileged by law.

35. Plaintiffs were aware of their confinement.

36. As a result of this conduct by Defendants, Plaintiffs were damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "36" with full force and effect as though set forth at length herein

38. Upon information and belief, on March 10, 2017 at the Queens County Criminal Court and continuing thereafter, Defendants, jointly and severally in their capacity as police officers and/or detectives, caused Plaintiffs to be held in custody, against their will, at NYC DOC Riker's Island for approximately 7 days.

39. Plaintiffs were aware of their confinement for the entire period that they were confined.

40. The Defendants conduct in causing Plaintiffs' confinement was intentional, without consent, privilege or probable cause and not otherwise authorized by law.

41. As a result of Defendants conduct, Plaintiffs were damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "41" with full force and effect as though set forth at length herein

43. That on March 10, 2017 Plaintiffs were arrested and from that time until the end of the criminal prosecution on or about September 28, 2017 when all charges against Plaintiffs were dismissed and sealed, Defendants deliberately and maliciously prosecuted Plaintiffs, who were innocent men, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the Plaintiffs of violations of the criminal laws of the State of New York.

44. The Defendants failed to take reasonable steps to stop the prosecution of the Plaintiffs and instead maliciously and

deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiffs.

45. The commencement and continuation of these criminal proceedings were malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants to achieve an objective repugnant to the legitimate ends of justice.

46. As a result of the malicious prosecution, Plaintiffs were deprived of their liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

47. The Plaintiffs made multiple court appearances to defend their liberty as a result of the unjust prosecution.

48. As a result of Defendants' conduct Plaintiff were damaged.

AS AND FOR A SIXTH CAUSE OF ACTION

49. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "48" with full force and effect as though set forth at length herein

50. Defendants DET. CRISTOP CRUZADO (Tax Reg. 945630), DET. WAGNER (of the 113th Detective Squad on 3/9/17), DET. ALEKSANDR KALOGIROS (of the 113th Detective Squad on 3/9/17) were at all

times relevant, duly appointed and acting officers of the New York City Police Department.

51. At all times mentioned herein, Defendants **DET. CRISTOP CRUZADO** (Tax Reg. 945630), **DET. WAGNER** (of the 113th Detective Squad on 3/9/17), **DET. ALEKSANDR KALOGIROS** (of the 113th Detective Squad on 3/9/17) were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or **THE CITY OF NEW YORK**.

52. Plaintiffs bring this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

53. That on March 10, 2017 within the NYPD 113th Pct. in Queens, NY, Defendants, jointly and severally, subjected Plaintiffs to a reasonable apprehension of an impending harmful or offensive touching immediately preceding their unlawful arrests of Plaintiffs. At no time did the Defendants have legal cause, consent, privilege or authority to conduct themselves in this manner, nor was it otherwise authorized by law.

54. That on March 10, 2017 within the NYPD 113th Pct. in Queens, NY, Defendants, jointly and severally, subjected Plaintiffs to a harmful and/or offensive touching. At no time did the Defendants have legal cause, consent, privilege or authority

to conduct themselves in this manner, nor was it otherwise authorized by law.

55. That on March 10, 2017 within the NYPD 113th Pct. in Queens, NY, Defendants jointly and severally in their capacity as police officers and/or detectives, without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiffs, restrained them and interfered with their liberty and then took them into custody and charged them with various crimes that Plaintiffs were innocent of. Plaintiffs were held in custody for approximately 18 hours until they were arraigned. The Defendants intentionally confined Plaintiffs without their consent and the confinement was not otherwise privileged by law and, at all times, Plaintiffs were conscious of their confinement.

56. That on March 10, 2017 beginning at Queens County Criminal Court and continuing at NYC DOC Rikers Island, Defendants jointly and severally in their capacity as police officers and/or detectives caused Plaintiffs to be confined in custody after bail was set at their arraignments. They remained confined for approximately seven days until they were released on their own recognizance when no indictment was secured. At all times Plaintiffs were aware of their confinement. Plaintiffs did not

consent to the confinement nor was it otherwise privileged by law.

57. That beginning on or about March 10, 2017 and continuing until the end of the aforementioned criminal prosecution on or about September 28, 2017 when all charges against Plaintiffs were dismissed and sealed, the Defendants maliciously prosecuted Plaintiffs by causing a criminal prosecution to be commenced against them without the Defendants possessing probable cause to do so. The prosecution was initiated and allowed to continue in malice and designed to achieve an objective other than the legitimate ends of justice.

58. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from being subjected to excessive use of force;
- g. Freedom from being subjected to unlawful summary punishment.

59. As a result of the Defendants' conduct Plaintiffs were damaged.

AS AND FOR A SEVENTH CAUSE OF ACTION

60. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "59" with full force and effect as though set forth at length herein

61. In relevant part, 42 U.S.C. § 1985(3) provides that, "[i]f two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have an action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

62. Defendants did conspire to directly violate Plaintiffs' federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to assault, batter, falsely arrest, falsely imprison and maliciously prosecute them without legal authority or consent.

63. Defendants did conspire to indirectly violate Plaintiff's federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to

assault, batter, falsely arrest, falsely imprison and maliciously prosecute them without legal authority or consent.

64. That Defendants did in fact further the conspiracy by actually assaulting, battering, falsely arresting, falsely imprisoning and maliciously prosecuting Plaintiffs without legal authority or consent.

65. As a result of the Defendants' conduct Plaintiffs suffered a deprivation of the above enumerated rights guaranteed by the United States Constitution, the laws of The United States and the State of New York.

AS AND FOR AN EIGHTH CAUSE OF ACTION

66. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "65" with full force and effect as though set forth at length herein

67. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest especially when its police officers are not in possession of a court authorized arrest warrant and where individuals, especially as Plaintiffs here, have not committed any crime, that its police officers should only make an arrest based on probable cause.

68. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiffs (or

similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

69. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that probable cause must be present before individuals such as Plaintiffs herein can be arrested.

70. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused Defendants herein to assault, batter, falsely arrest, falsely imprison and maliciously prosecute Plaintiffs under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

71. As a result of Defendant's acts, omissions and systemic failures Plaintiffs were damaged.

AS AND FOR A NINTH CAUSE OF ACTION

72. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "71" with full force and effect as though set forth at length herein

73. Defendant **THE CITY OF NEW YORK** was negligent in that prior to, and at the time of the acts complained of herein, due to the prior history of **DET. CRISTOP CRUZADO (Tax Reg. 945630)**, **DET. WAGNER (of the 113th Detective Squad on 3/9/17)**, **DET. ALEKSANDR**

KALOGIROS (of the 113th Detective Squad on 3/9/17), knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact they were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals. Defendant **THE CITY OF NEW YORK** failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiffs herein and other members of the community similarly situated.

74. As a direct and proximate result of the Defendant's failures Plaintiffs were damaged.

AS AND FOR A TENTH CAUSE OF ACTION

75. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "74" with full force and effect as though set forth at length herein

76. That on March 10, 2017 at NYPD 113th Pct. in Queens, NY Defendants in their capacity as Police Officers and/or Detectives owed Plaintiffs a duty to act reasonably in the carrying out of their duties and responsibilities as members of the NYPD.

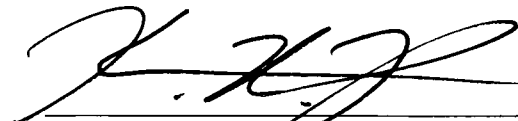
77. That on March 10, 2017 beginning at the NYPD 113th Pct. at 11:15am and continuing thereafter Defendants in their capacity

as Police Officers and/or Detectives, breached their duty to Plaintiffs by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless and negligent all in disregard of Plaintiffs' rights as citizens of the United States and the State of New York.

78. As a direct and proximate result of the Defendants' conduct Plaintiffs were damaged.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.

Dated: JAMAICA, NEW YORK
JUNE 6, 2018



Kareem R. Vessup
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.
Attorney for Plaintiffs
SHAMAR WHITTINGHAM and LYNDON
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Our File No. 17-1444

VERIFICATION

STATE OF NEW YORK)
) ss.
COUNTY OF QUEENS)

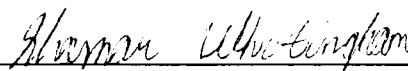
SHAMAR WHITTINGHAM, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

COMPLAINT

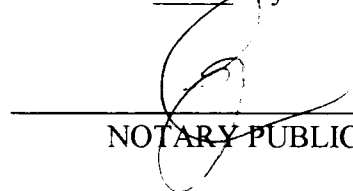
and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: JAMAICA, NEW YORK
 JUNE 6, 2018



SHAMAR WHITTINGHAM

Subscribed and sworn to before me
on this the 6 day of June, 2018



NOTARY PUBLIC

THERESA A. COOK
Notary Public, State of New York
No. 01CO6099323
Qualified in Rockland County
Commission Expires September 29, 2019

VERIFICATION

STATE OF NEW YORK)
) ss.
COUNTY OF QUEENS)

LYNDON SYLVESTER, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

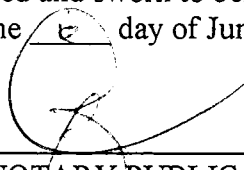
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: JAMAICA, NEW YORK
 JUNE 6, 2018

Lyndon Sylvester
LYNDON SYLVESTER

Subscribed and sworn to before me
on this the 6 day of June, 2018



NOTARY PUBLIC

THERESA A. COOK
Notary Public, State of New York
No. 01CO6099323
Qualified in Rockland County
Commission Expires September 29, 2019